LEGAL REFERENCE DOCUMENT

Daryl Keenan Mack

v

Greene Consulting Engineers (Pty) Ltd

Unfair Dismissal | Automatically Unfair Dismissal | ECSA Professional Misconduct

Date of Dismissal: 9 March 2026 | Prepared: 9 March 2026

Employment Start	Date of Dismissal	Length of Service	Monthly Salary
1 March 2026	9 March 2026	9 Working Days	R36,500

CONFIDENTIAL — FOR USE IN CCMA PROCEEDINGS, ECSA COMPLAINT, AND LEGAL CONSULTATION ONLY

SECTION 1 — PARTIES, KEY FACTS & CHRONOLOGY

1.1 The Parties

FIELD	DETAIL
Employee	Daryl Keenan Mack — ID: 9801265313082
Qualification	BSc (Hons) Civil Engineering — University of Cape Town
Status	Candidate Engineer — Working Toward PrEng Registration with ECSA
Industry Experience	3 Years — RC Multi-Storey, Steel Warehouses, Seismic Design, Civil Infrastructure
Employer	Greene Consulting Engineers (Pty) Ltd — Reg No: 2009/001718/07
Employer Address	Bondev Office Park, Block D, Cnr Willem Botha Str & Wierda Rd, Eldoraigne, Centurion
CEO / MD	JM Watermeyer — Pr Eng, Pr CPM, BEng
Director (Signatory)	Floris Jordaan (FPJ Jordaan) — Pr Tech Eng (Civil), BSc (Hons) Structural
Director	Rikus De Beer — Pr Eng, PMP
Associate	Larry Nell (LG Nell) — Pr Eng (Civil), BEng (Hons) Structural
Junior Engineers	Ruan Van Zyl, Jacques Van Der Walt, Sean (surname TBC)
Firm Size	Approximately 13 Employees
Firm Established	2009

1.2 Chronology of Key Events

DATE	EVENT
26 Feb 2026	NDA / Registration Form signed — pre-employment, signed by JM Watermeyer (MD)
26 Feb 2026	Employment Contract signed — Larry Nell named as direct supervisor in Clause 1
1 Mar 2026	Employment commenced — no laptop, no AutoCAD licence, no workstation prepared
1 Mar 2026	Seated with draughting team, not engineering team — despite available space in engineering area
1 Mar 2026	Assigned rebar detailing drawings under direction of Jacques Van Der Walt
Early Mar	Assigned phantom structural design exercise — internal layout only, no architect

2026	drawings, no geotech, no client, no brief
Early Mar 2026	Junior engineer confirmed in writing: only available information was a location and project name
~4 Mar 2026	Sick day taken — email sent raising laptop, AutoCAD, and workstation concerns
~4 Mar 2026	Rikus De Beer emails asserting hierarchy — IT requests must be made not instructed
5 Mar 2026 7:00–8:00am	CRITICAL — DISMISSAL DECISION COMMUNICATED: Larry Nell called Daryl into his office and told him upper management was not impressed and wanted to let him go. This followed the 3 March sick day email. Proves dismissal decision was made BEFORE the 6 March email Greene cites as the reason for dismissal.
5 Mar 2026	Alignment meeting with Larry — meeting focused on hierarchy assertion, not employee concerns — by this point Larry had already communicated the dismissal intention
5 Mar 2026	MD Johan Watermeyer verbally told Daryl: 'You spoke to Larry, good. Fall in line' — DOCUMENTED
5 Mar 2026	Floris Jordaan directed Daryl to report to Jacques, Ruan, and Sean as superiors — ultimatum issued
6 Mar 2026	Comprehensive email sent to Larry covering 8 professional concerns including ECSA supervision
6 Mar 2026	Confirmation email sent to Floris documenting reporting structure ultimatum
9 Mar 2026	Called in — given opportunity to raise concerns — Floris responds: 'You are not going to change the way we do things here'
9 Mar 2026	Employment verbally terminated — end of probation — no disciplinary hearing held
9 Mar 2026	One month salary verbally offered — not accepted — not documented in termination letter
9 Mar 2026	Formal termination letter issued signed by Floris Jordaan — states insubordination and incompatibility
9 Mar 2026	Dismissal confirmation email sent by Daryl to Floris, Larry, Rikus — all rights reserved
9 Mar 2026	Formal rebuttal email sent — all grounds disputed point by point

SECTION 2 — EMPLOYMENT CONTRACT ANALYSIS

Contract signed: 26 February 2026 | Employment commenced: 1 March 2026 | Terminated: 9 March 2026

2.1 Clause 1 — Job Title & Reporting Line

CONTRACT	The Employee shall be employed as a Structural Engineer and will report directly to Mr Larry Nell.

How This Clause Benefits You

- Larry Nell is named as your direct supervisor in the contract — this is Greene's own commitment
- Larry Nell never assigned you a project, reviewed your work, or conducted any mentorship session
- Greene directed you to report to Ruan Van Zyl and Jacques Van Der Walt in practice — directly contradicting this clause
- The termination letter simultaneously claims Larry Nell satisfied supervision requirements AND that refusing to report to Ruan Van Zyl was insubordination — these two claims cannot both be true
- **This internal contradiction in Greene's own termination letter is your strongest factual argument**

➜ **See:** *Section 5 — Engineering Profession Act | Section 6 — Termination Letter Analysis (Point 5)*

2.2 Clause 3 — Duties

CONTRACT	The Employee agrees and undertakes to obey all reasonable and lawful orders and instructions. The Employee confirms that he is capable and competent of performing the duties for which he has been employed. Should work be unavailable, the Employee will perform other suitable work within vocational abilities.

How This Clause Benefits You

- The instruction to report to unregistered engineers as supervisors is not lawful under the Engineering Profession Act — Clause 3 itself requires instructions to be lawful
- You cannot be found insubordinate for refusing an unlawful instruction
- Rebar detailing as primary task is arguably outside 'suitable work within vocational abilities' for a BSc Hons structural engineer — Clause 3 itself supports your position on task misalignment
- **Greene used Clause 3 against you but the clause contains the word lawful — that word is your defence**

➜ **See:** *Section 4 — Labour Relations Act (Insubordination Analysis) | Section 5 — Engineering Profession Act*

2.3 Clause 4 — Probation Period

CONTRACT	Probationary period of 3 months. During the first four weeks this contract may be terminated by either party upon 24 hours notice. After the initial four week period, termination requires 1 month's written notice.

Key Points

- You were dismissed within the first four weeks — the 24 hour notice provision applies contractually
- However the BCEA minimum notice for less than 6 months service is one week — the BCEA overrides a less favourable contractual provision
- You are entitled to one week's notice pay — approximately R8,400 gross — not 24 hours pay
- **Probation provisions do NOT override automatically unfair dismissal protections under Section 187 of the LRA — probation status is irrelevant to an automatically unfair dismissal claim**
- The stated reason for dismissal is insubordination — which is misconduct — not unsuitability — which is the only ground for which Schedule 8 Item 8(5) permits dismissal without a full disciplinary process

➜ **See:** *Section 4.2 — Procedural Unfairness | Section 4.3 — Automatically Unfair Dismissal*

2.4 Clause 10 — Termination of Employment

CONTRACT	The Employer will in such event follow the procedure laid down in the disciplinary code and procedure.

How This Clause Benefits You

- The contract explicitly requires Greene to follow their own disciplinary code before summary termination
- No disciplinary hearing was held — no written charge was issued — no opportunity to respond was given
- **This is a breach of the employment contract itself — separate from and in addition to the LRA violation**
- A breach of contract claim can run parallel to the CCMA referral and strengthens your overall position

➜ **See:** *Section 4.2 — Procedural Unfairness Under the LRA*

2.5 Clause 19 — Confidentiality

CONTRACT	The Employee shall not divulge any information to any unauthorised persons or bodies relating to any aspect of his work or operations of the Employer.

Limitation of This Clause Against You

- This clause does not prevent reporting professional misconduct to a statutory regulator — ECSA is a statutory body under the Engineering Profession Act
- Reporting to the CCMA is a statutory right expressly confirmed in the termination letter under Section 191 of the LRA — cannot be overridden by a contractual confidentiality clause
- Internal communications raising professional concerns are not disclosures to unauthorised persons — they were sent to management and directors of the firm

➜ **See:** *Section 3 — NDA Analysis (Clause 3.2.5) | Section 5 — Engineering Profession Act*

2.6 Clause 20 — Patents and Copyright

CONTRACT	The Employer shall reserve the right to retain all rights to any inventions, designs, discoveries, improvements made, discovered or conceived by the Employee during employment.

Limitation Against Greene

- Your engineering methodology and calculation approaches were developed over 3 years of prior employment at L&S Consulting and Nadeson — before joining Greene
- Pre-existing knowledge brought into employment cannot be assigned to an employer through an employment contract under South African IP law
- You have timestamped personal copies of your work created during the 9 day employment predating any Greene project assignment
- Seismic design methodology, sinkhole engineering approach, and warehouse structural experience are pre-existing personal professional knowledge — not Greene IP

➜ **See:** *Section 7 — Knowledge Extraction Concerns*

SECTION 3 — NDA / REGISTRATION FORM ANALYSIS

NDA signed: 26 February 2026 | Signed by: JM Watermeyer (MD) on behalf of Greene | Nature: Pre-employment registration and bilateral NDA

3.1 Nature of the NDA

- The NDA was executed on 26 February 2026 — before employment commenced on 1 March 2026
- It is titled 'Registration and NDA Form' designed for prospective clients, partners, suppliers, or employees
- It is bilateral — both parties are bound equally, not just you
- Greene invoked this NDA to attempt to prevent you from raising concerns and exercising legal rights — that invocation is contractually unsound on their own terms

3.2 Clause 3.2.5 — Critical Exclusion

NDA	Confidential Information excludes information that: must be disclosed by law, provided notice is given to the Disclosing Party in advance.

How This Clause Benefits You — Critically

- **Reporting professional misconduct to ECSA is a matter governed by the Engineering Profession Act 46 of 2000 — it is a disclosure required or permitted by law**
- Filing at the CCMA is a statutory right under Section 191 of the Labour Relations Act — also a disclosure required by law
- Seeking legal advice is protected — attorney-client privilege exists independently of any NDA
- Greene's own NDA contains the exclusion that defeats their attempt to suppress your ECSA complaint and CCMA referral
- Notice to Greene was effectively provided through your formal emails of 6 March and 9 March 2026 which referenced your intention to file with ECSA and CCMA — satisfying the notice condition in Clause 3.2.5

3.3 Clause 9 — Non-Solicitation

NDA	For a period of two years following termination, neither party shall solicit, induce or attempt to engage any clients, suppliers or personnel of the other party.

What This Clause Does and Does Not Restrict

- You cannot directly solicit Greene's clients, suppliers, or staff for two years — this is a standard and enforceable restriction

- This clause does NOT prevent you from working in the structural engineering industry
- This clause does NOT prevent you from working for a competing firm
- This clause does NOT prevent you from applying for jobs at any firm that does not involve soliciting Greene's specific clients
- Greene is equally bound — they cannot solicit you to return or use your contact details to approach you for two years without your consent

3.4 Clause 7 — Duration

NDA	The obligations of confidentiality under this Agreement shall remain in effect indefinitely.

Practical Limitation

- Indefinite confidentiality applies to genuinely confidential commercial information — client lists, pricing, business strategies
- It does not apply to information about statutory violations — these are matters of law not commercial confidence
- Your own professional methodology and engineering knowledge are not Greene's confidential information

SECTION 4 — LABOUR LAW ANALYSIS

4.1 Substantive Unfairness — Invalid Reason for Dismissal

Legislation: Labour Relations Act 66 of 1995 — Section 188 | Code of Good Practice: Dismissal — Schedule 8

LRA s188	A dismissal is unfair if the employer fails to prove that the reason for dismissal is a fair reason related to the employee's conduct or capacity, or is based on the employer's operational requirements.

Greene's Stated Reason — Insubordination

- Greene claims you refused to comply with lawful and reasonable operational instructions
- The specific instructions cited are: reporting to Ruan Van Zyl, and producing rebar detailing drawings
- An instruction is only lawful if it does not require the employee to violate the law
- Directing a candidate engineer to substitute an unregistered engineer for a PrEng supervisor violates the Engineering Profession Act — it is therefore not a lawful instruction
- **Asserting a statutory professional obligation cannot constitute insubordination — this is the foundation of your substantive unfairness argument**
- Regarding rebar detailing — your email explicitly stated you did not mind doing this work to align with company standards — this is not a refusal

➜ **See:** *Section 5 — Engineering Profession Act | Section 6.3 — Termination Letter Point 3*

4.2 Procedural Unfairness — No Disciplinary Process

Legislation: LRA Schedule 8 Item 4 — Code of Good Practice: Dismissal

LRA Sch 8 Item 4	The employer should conduct an investigation to determine whether there are grounds for dismissal. The employer should notify the employee of the allegations, give the employee a reasonable opportunity to prepare a response, and allow the employee to state a case in response to the allegations.

Process Failures — Each Is a Separate Ground

- No investigation was conducted into the alleged insubordination
- No written notice of allegations was issued
- No disciplinary hearing was convened
- No opportunity to respond to specific charges was provided
- No disciplinary finding was made before dismissal was communicated
- **Greene's own employment contract Clause 10 requires following the disciplinary code — they breached their own contract**

Greene's Counter-Argument and Its Weakness

- Greene relies on Schedule 8 Item 8(5) — an employer may dismiss during probation if the employee is found to be unsuitable
- Item 8(5) applies to unsuitability — not misconduct — these are legally distinct grounds requiring different processes
- Greene's stated reason is insubordination which is misconduct — they cannot use the probation unsuitability provision for a misconduct dismissal
- **This conflation of misconduct and unsuitability is a fatal flaw in Greene's procedural argument**

➜ **See:** *Section 2.4 — Employment Contract Clause 10 | Section 4.3 — Automatically Unfair Dismissal*

4.3 Automatically Unfair Dismissal — Section 187 LRA

Legislation: Labour Relations Act 66 of 1995 — Section 187(1)(b) and 187(1)(h)

LRA s187(1)	A dismissal is automatically unfair if the reason for the dismissal is that the employee exercised any right conferred by this Act or any other employment law, or the employee took action or indicated an intention to take action against the employer by exercising a right conferred by this Act or any other employment law.

Why This Is Your Strongest Argument

- **You were dismissed immediately after asserting your right to proper PrEng supervision under the Engineering Profession Act — a right conferred by employment law**
- You were dismissed immediately after sending formal written correspondence raising ECSA compliance concerns
- You were dismissed immediately after indicating an intention to file with ECSA
- The chronological sequence — formal emails raising statutory rights on 6 March, dismissal on 9 March — establishes clear causal connection
- Floris Jordaan's statement 'You are not going to change the way we do things here' made on the day of dismissal confirms the dismissal was for asserting your professional position

Compensation Available

- Section 194(3): Compensation for automatically unfair dismissal may not exceed 24 months remuneration
- At R36,500 per month — maximum theoretical award: R876,000
- Arbitrators have wide discretion — realistic award for 9 days service: R73,000 to R300,000 depending on commissioner
- This ceiling is what drives Greene's motivation to settle — their attorneys will advise that contesting an automatically unfair dismissal claim with this evidence is high risk

➜ **See:** *Section 8 — Settlement Strategy & Financial Summary*

4.4 UIF Entitlement

Legislation: Unemployment Insurance Act 63 of 2001 | Unemployment Insurance Contributions Act 4 of 2002

- You contributed to UIF from 1 March 2026 to 9 March 2026
- You are entitled to claim UIF benefits as a dismissed employee — not a resigned employee
- File at Department of Labour, 215 Francis Baard Street, Pretoria — same visit as CCMA
- Request UI19 form from Greene — they are legally obligated to provide it
- Claim will be small given 9 days of contributions but file immediately to establish the record

4.5 Notice Pay Entitlement

Legislation: Basic Conditions of Employment Act 75 of 1997 — Section 37

ENTITLEMENT	AMOUNT / BASIS
Salary to date (9 days)	R15,165 gross approx (R36,500 / 21.67 days x 9 days)
Notice pay (BCEA minimum — 1 week)	R8,400 gross approx (R36,500 / 4.33 weeks)
Pro rata 13th cheque (9 days / 365)	R900 gross approx
Total statutory entitlement	R24,465 gross before tax deductions
Note	Push for tax directive to minimise PAYE deductions on settlement portion

SECTION 5 — ENGINEERING PROFESSION ACT & ECSA ANALYSIS

5.1 Applicable Legislation

EPA s26	No person shall, for or on behalf of another person or for any company, perform any act or undertaking falling within the scope of the profession of engineering unless such person is registered in terms of this Act.

Legislation: Engineering Profession Act 46 of 2000 | ECSA Code of Conduct for Registered Persons

5.2 The Supervision Requirement

- Candidate engineers working toward PrEng registration must work under the active supervision and mentorship of a registered professional engineer
- This is not merely an internal organisational preference — it is a professional registration requirement that affects your ability to build a qualifying ECSA logbook
- Greene's claim that the Act does not prescribe internal reporting structures is technically correct but misses the point — the issue is not the reporting structure but the absence of active PrEng supervision and mentorship
- A PrEng named in a contract who never assigns work, never reviews output, and never provides mentorship does not satisfy the supervision requirement in substance
- Rebar detailing and phantom exercises without proper briefs do not constitute qualifying engineering experience for ECSA logbook purposes

➜ **See:** *Section 2.1 — Employment Contract Clause 1 | Section 6.5 — Termination Letter Point 5*

5.3 Named Registered Professionals and Their Exposure

NAME	REGISTRATION	EXPOSURE
Larry Nell	Pr Eng (Civil)	Named supervisor in contract — never functioned as active supervisor — never assigned projects or reviewed work — failed to respond to formal written request for PrEng supervision confirmation
Rikus De Beer	Pr Eng, PMP	Received formal written notice of supervision failures — failed to address concerns — participated in alignment meeting focused on hierarchy not professional compliance
Floris Jordaan	Pr Tech Eng (Civil)	Directed candidate engineer to report to unregistered engineers — issued ultimatum — dismissed engineer for asserting statutory rights — signed termination letter containing contradictory supervision claims

5.4 How to File the ECSA Complaint

- Website: www.ecsa.co.za — complaints section
- Search Larry Nell and Rikus De Beer on the ECSA public register to obtain their registration numbers before filing
- Search Greene Consulting Engineers on the ECSA register for their firm registration number
- Attach: all emails, timestamped notes, termination letter, employment contract
- Grounds: (1) Failure to provide designated PrEng supervision to candidate engineer; (2) Directing candidate engineer to report to unregistered engineers; (3) Assigning engineering work without adequate briefing or professional oversight
- ECSA investigation runs independently of CCMA — file both simultaneously for maximum pressure
- **A finding of professional misconduct by ECSA affects registration status, indemnity insurance, and signing authority — this is their greatest personal professional risk**

SECTION 6 — TERMINATION LETTER ANALYSIS — POINT BY POINT

Letter dated: 9 March 2026 | Signed by: Floris Jordaan, Director | Reference: Confirmation of Termination of Employment — Probation Period — DN Mack

6.1 Point 1 — Confirmation of Termination

LETTER	Employment terminated with effect from 9 March 2026 during probation. Decision reached having regard to conduct displayed during first week of employment. Written correspondence dated 6 March 2026 records a refusal to comply with operational instructions which constitutes insubordination.

Your Response

- Termination confirmed — dismissal event established for CCMA purposes — clock starts 9 March 2026
- Stated reason is insubordination — misconduct ground — requires disciplinary hearing — none was held
- **The 6 March correspondence cited as evidence of insubordination actually demonstrates you asserting statutory rights — the letter inadvertently makes your case**

➜ **See:** *Section 4.1 — Substantive Unfairness | Section 4.2 — Procedural Unfairness*

6.2 Point 2 — Opportunity to Raise Concerns

LETTER	You were afforded an opportunity to raise concerns during discussions with management during your first week of employment, including the meeting held on 9 March 2026.

Your Response

- Confirmed — opportunity was given — concerns were raised
- Floris Jordaan's response was: 'You are not going to change the way we do things here' — no substantive engagement occurred
- This documented response confirms the firm was aware of your concerns and deliberately chose not to address them
- A pre-dismissal discussion is not a substitute for a disciplinary hearing — this point does not satisfy procedural fairness requirements

➜ **See:** *Section 1.2 — Chronology (9 March 2026 entry)*

6.3 Point 3 — Refusal to Comply With Instructions

LETTER	You stated you were required to work under supervision of a registered professional engineer and that rebar detailing falls outside the scope of engineering work. These statements constitute insubordination.

Your Response — Point by Point

- The supervision statement quotes the Engineering Profession Act — asserting a statutory obligation is not insubordination under South African labour law
- The rebar statement was accompanied by explicit willingness to comply — 'I do not mind doing this type of work to align myself with company standards'
- Greene has quoted your willingness to comply as evidence of insubordination — this characterisation will not withstand scrutiny before a CCMA commissioner
- **For an instruction to be lawful it must not require the employee to violate the law — the supervision instruction did exactly that**
- Greene's own Clause 3 requires instructions to be lawful — their instruction was not

➜ **See:** *Section 2.2 — Employment Contract Clause 3 | Section 5.2 — Supervision Requirement*

6.4 Point 4 — Process Followed

LETTER	Schedule 8 Item 8(5) provides an employer may dismiss an employee during probation if found to be unsuitable. Discussions were held regarding operational expectations and reporting structures.

Your Response

- Schedule 8 Item 8(5) applies to unsuitability — not to misconduct
- Greene stated insubordination as the reason — insubordination is misconduct — misconduct requires a disciplinary hearing regardless of probationary status
- Greene has conflated two separate legal grounds — unsuitability and misconduct — attempting to use the procedurally lighter unsuitability pathway for a misconduct dismissal
- **This conflation is procedurally fatal to their case**
- Employment contract Clause 10 independently requires Greene to follow their disciplinary code — they breached their own contract

➜ **See:** *Section 4.2 — Procedural Unfairness | Section 2.4 — Employment Contract Clause 10*

6.5 Point 5 — Professional Supervision

LETTER	Your assertion that you were not assigned a supervising professional engineer is factually incorrect. In terms of Clause 1 of your Employment Contract you were appointed as a Structural Engineer and assigned to report directly to Mr Larry Nell who is a registered Professional Engineer.

Your Response — The Central Contradiction

- Larry Nell is named in the contract — this is not disputed
- Larry Nell never assigned a project, never reviewed work, never conducted mentorship, never functioned as active supervisor — this is the distinction between nominal and substantive supervision

- The termination letter simultaneously claims Larry Nell was your active supervisor AND cites the instruction to report to Ruan Van Zyl as a lawful operational instruction you were required to follow
- **THESE TWO CLAIMS ARE MUTUALLY EXCLUSIVE — if Larry Nell was your active supervisor, the instruction to report to Ruan Van Zyl contradicts that arrangement; if Ruan Van Zyl was your actual reporting line, Larry Nell was not functioning as your supervisor**
- This is an irresolvable internal contradiction within Greene's own signed document — no attorney can argue around it without abandoning one position or the other
- The letter further states that ECSA guidelines do not prescribe internal reporting structures — this is technically correct but you are not disputing the reporting structure — you are disputing the absence of active PrEng supervision and mentorship

➜ **See:** *Section 2.1 — Employment Contract Clause 1 | Section 5.2 — Supervision Requirement*

6.6 Point 6 — Rights Reserved

LETTER	You are entitled to exercise any rights available to you under South African law including referral of a dispute in terms of Section 191 of the Labour Relations Act.

Significance

- Greene has explicitly confirmed your right to refer to the CCMA in their own termination letter — this cannot be retracted
- Section 191 referral is your immediate next step — file at CCMA Pretoria, Metro Park Building, 351 Francis Baard Street
- 30 day clock runs from 9 March 2026 — do not delay
- Greene's acknowledgment of your rights in the termination letter will be referenced at conciliation

6.7 Missing From the Termination Letter

What Greene Did Not Include — Each Omission Is Significant

- **No reference to the verbal settlement offer of one month salary — offer was made verbally and never documented**
- No reference to any disciplinary hearing, charge sheet, or finding — because none occurred
- No written performance concerns previously issued — because none were issued
- No response to the eight professional concerns raised in your 6 March email — because they had no substantive answer
- No named replacement supervisor or mentorship arrangement offered — because no genuine supervision existed
- No reference to any ECSA mentorship framework — because none was implemented

SECTION 7 — EVIDENCE INVENTORY & PROTECTION

7.1 Documents You Hold

DOCUMENT	DATE	SIGNIFICANCE
Employment Contract	26 Feb 2026	Names Larry Nell as supervisor — contains lawful instruction requirement — Clause 10 disciplinary obligation
NDA / Registration Form	26 Feb 2026	Clause 3.2.5 excludes statutory disclosures — defeats NDA suppression attempt
Sick day email + onboarding issues	~4 Mar 2026	Documents laptop failure, AutoCAD absence, lost productive day
Rikus De Beer hierarchy email	~4 Mar 2026	Documents firm's use of hierarchy to deflect legitimate concerns
Larry Nell meeting note — 5 Mar 7-8am	5 Mar 2026	CRITICAL — Larry told you management wanted to let you go — BEFORE 6 March email — dismissal decision made in response to 3 March first protected communication
MD Johan note: 'Fall in line'	5 Mar 2026	Timestamped personal note — documents senior leadership suppressing concerns
Floris ultimatum note	5 Mar 2026	Timestamped note — documents accept or leave ultimatum
Comprehensive email to Larry	6 Mar 2026	8 professional concerns in writing — project brief, supervision, ECSA, seating, onboarding, rebar
Floris confirmation email	6 Mar 2026	Documents reporting to unregistered engineers — ECSA violation on record
Junior engineer confirmation (verbal)	Early Mar 2026	Documents phantom project — no brief, no client, no architect drawings
Dismissal confirmation email	9 Mar 2026	Sent to Floris, Larry, Rikus — documents dismissal, rejects one month offer, reserves all rights
Formal termination letter	9 Mar 2026	Signed by Floris — contains internal contradiction on supervision — confirms dismissal event — Section 191 acknowledged
Formal rebuttal email	9 Mar 2026	Point by point dispute of all termination letter claims — NDA clause cited — Clause 10 breach cited
Personal work log	1-9 Mar 2026	Daily record of tasks, methodology, assumptions — proves you produced work
Timestamped calculations	1-9 Mar 2026	Cloud-backed personal copies —

		predates any Greene deletion

7.2 Evidence Protection Rules

- All documents saved in minimum three locations — personal email inbox, Google Drive, and phone storage
- Every email sent from personal account — sent items are permanently yours and cannot be deleted by Greene
- Verbal conversations followed up in writing within the hour — confirmation emails create paper record of verbal exchanges
- Physical calculations retrieved and scanned — timestamped digital copies stored externally
- If Greene deletes work product, Floris Jordaan's termination letter itself confirms the tasks assigned — their own document proves you were given work

SECTION 8 — FINANCIAL SUMMARY & SETTLEMENT STRATEGY

8.1 What Greene Owes You Statutorily

ENTITLEMENT	GROSS	BASIS
Salary to 9 March 2026 (9 days)	R15,165	*R36,500 / 21.67 days x 9*
Notice pay (BCEA minimum — 1 week)	R8,400	*BCEA s37 overrides 24hr contract clause*
Pro rata 13th cheque (9 / 365 days)	R900	*Contract Clause 7*
TOTAL STATUTORY ENTITLEMENT	**R24,465**	*Before PAYE & UIF deductions*

8.2 Settlement Target Range

POSITION	AMOUNT (NET)	RATIONALE
Opening Position	**R219,000**	*6 months net — justified by automatically unfair dismissal ceiling of R876,000 and ECSA exposure*
Realistic Landing Zone	**R146,000 – R183,000**	*4–5 months net — strong outcome given length of service*
Absolute Floor	**R109,500**	*3 months net — do not accept below this — file at CCMA instead*
Greene's Opening (Verbal)	**R36,500**	*1 month — made verbally, not documented, not accepted — starting point only*
Maximum Theoretical Award	**R876,000**	*24 months — LRA s194(3) — automatically unfair dismissal ceiling*

8.3 Non-Monetary Settlement Terms — Non-Negotiable

- Neutral reference — exact wording agreed in settlement document — confirmation of employment dates and position only
- No derogatory reference clause — Greene bound to provide only the agreed neutral reference when contacted by future employers
- **No misconduct reporting waiver — you retain the right to file with ECSA regardless of settlement — this is non-negotiable**
- Tax directive — settlement amount paid subject to tax directive minimising PAYE — could add R20,000 to R40,000 to net amount
- Certificate of service — Greene obligated under BCEA to provide — confirm employment dates and position held
- Specific exit date — last day of employment clearly defined in the agreement

- Payment within 7 days of signature — do not accept delayed payment clauses

8.4 Greene's Exposure Summary

RISK CATEGORY	EXPOSURE
Automatically Unfair Dismissal (LRA s187)	Up to R876,000 gross — 24 months salary
Standard Unfair Dismissal (LRA s188)	Up to R438,000 gross — 12 months salary
ECSA Professional Misconduct	Registration sanctions for Larry Nell and Rikus De Beer — affects indemnity insurance and signing authority
Breach of Employment Contract (Clause 10)	Separate civil claim for failure to follow disciplinary code
CCMA Arbitration Costs	Adverse cost orders if delay tactics used without good cause
Reputational Damage	Arbitration record is public — small industry — visible to future clients and candidates
Recruitment Agency Claim	Potential fee dispute if placement concluded within guarantee period

SECTION 9 — IMMEDIATE ACTION PLAN

9.1 Tomorrow — Monday 10 March 2026

1	Send formal rebuttal email to Floris, Larry, Rikus — CC yourself and recruitment agency — from personal email
2	CCMA Pretoria — Metro Park Building, 351 Francis Baard Street — file Section 191 referral — open 07:30 — take all documents in a folder
3	Department of Labour — 215 Francis Baard Street Pretoria — file UIF application — request UI19 form from Greene by email same day
4	Email Greene requesting UI19 form — they are legally obligated to provide it
5	Contact recruitment agency formally — send pre-drafted agency notification email

9.2 This Week — 10 to 14 March 2026

- File ECSA complaint at www.ecsa.co.za — attach full documentation — search Larry Nell and Rikus De Beer registration numbers on ECSA public register before filing
- Update CV — include Greene with professional one-line explanation — lead with prior experience differentiators
- Begin Centurion job search — WSP, Aurecon, Bigen Group, Structa Consulting, boutique structural firms — speculative applications
- Set LinkedIn to open to work — not publicly visible
- Activate UCT alumni network and ECSA candidate network for warm introductions

9.3 CCMA Process Timeline

STAGE	DETAIL
Filing	Today — 10 March 2026 — 30 day clock from 9 March 2026
CCMA serves Greene	Within days of filing — Greene receives formal referral notice
Conciliation	Scheduled within 30 days of filing — facilitated negotiation — settlement most likely here
Certificate of Non-Resolution	Issued if no settlement at conciliation — matter proceeds to arbitration
Arbitration	Formal hearing — both parties present evidence — commissioner makes binding award — 6 to 12 months from filing
Award Enforcement	CCMA award enforceable as High Court order — execution against assets if unpaid

9.4 Free Resources

RESOURCE	CONTACT DETAILS
CCMA Pretoria	Metro Park Building, 351 Francis Baard Street, Pretoria | Tel: 012 317 7800 | Email: pta@ccma.org.za
CCMA Helpline	0861 161 616 — Free call — Advice on referral process
Department of Labour Pretoria	Laboria House, 215 Francis Baard Street, Pretoria | Tel: 012 309 4000 | Hours: 07:30–16:00 Mon–Fri
Legal Aid South Africa	0800 110 110 — Free call — Legal representation for qualifying applicants
ECSA Complaints	www.ecsa.co.za — Online complaint form — Free to file
CCMA Section 191 Form	LRA Form 7.11 — Available at CCMA office or www.ccma.org.za

SECTION 10 — CROSS REFERENCE INDEX

Use this index to quickly locate supporting references for any argument or point in dispute.

10.1 Key Arguments Cross Referenced

ARGUMENT	SUPPORTING REFERENCES
Asserting EPA right is not insubordination	EPA s26 (S5.1) | Contract Cl.3 'lawful' (S2.2) | LRA s187(S4.3) | Termination Letter Point 3 (S6.3)
No disciplinary process followed	LRA Sch8 Item 4 (S4.2) | Contract Cl.10 (S2.4) | Termination Letter Point 4 (S6.4) | Chronology (S1.2)
Automatically unfair dismissal	LRA s187(1)(b) and (h) (S4.3) | Chronology 6 Mar & 9 Mar (S1.2) | Floris statement (S6.2)
Larry Nell not active supervisor	Contract Cl.1 (S2.1) | EPA s26 (S5.2) | Termination Letter Point 5 contradiction (S6.5) | Chronology (S1.2)
NDA cannot suppress ECSA complaint	NDA Cl.3.2.5 (S3.2) | EPA s26 (S5.1) | LRA s191 confirmed in letter (S6.6)
Contract breach — no disciplinary code	Contract Cl.10 (S2.4) | LRA Sch8 Item 4 (S4.2) | Termination Letter Point 4 (S6.4)
Knowledge extraction concern	Contract Cl.20 limitation (S2.6) | Evidence inventory (S7.1) | Pre-existing methodology (S2.6)
Settlement leverage	LRA s194(3) ceiling (S4.3) | ECSA exposure (S5.3) | Greene exposure table (S8.4)
Termination letter contradiction	Contract Cl.1 (S2.1) | Termination Letter Point 5 (S6.5) | EPA supervision (S5.2)
Rebar detailing — not a refusal	Email 6 Mar explicit willingness (S1.2) | Contract Cl.3 suitable work (S2.2) | Termination Letter Point 3 (S6.3)

10.2 Legislation Quick Reference

LEGISLATION	SECTION	APPLICATION IN YOUR CASE
Labour Relations Act 66 of 1995	**s187(1)(b)/(h)**	Automatically unfair dismissal — dismissed for exercising statutory right
Labour Relations Act 66 of 1995	**s188**	Substantive unfairness — invalid reason for dismissal
Labour Relations Act 66 of 1995	**s191**	Right to refer dispute to CCMA — 30 days from dismissal
Labour Relations Act 66 of 1995	**s194(3)**	Compensation ceiling — automatically unfair dismissal — 24 months
LRA Schedule 8 Item 4	**Code of Practice**	Disciplinary hearing required before misconduct dismissal

LRA Schedule 8 Item 8(5)	**Code of Practice**	Greene's reliance — probation unsuitability — does not cover misconduct
BCEA 75 of 1997	**s37**	Minimum notice — 1 week for less than 6 months service
BCEA 75 of 1997	**s62-64**	Certificate of service — statutory obligation on employer
Engineering Profession Act 46 of 2000	**s26**	Registration requirement — only registered persons may perform engineering acts
Unemployment Insurance Act 63 of 2001	**s16-20**	UIF benefits — dismissed employees entitled to claim
NDA Clause 3.2.5	**Own Agreement**	Statutory disclosures excluded from confidentiality obligations

PREPARED FOR: DARYL KEENAN MACK

CCMA Referral | ECSA Complaint | Settlement Negotiation | Legal Consultation

Date of Dismissal: 9 March 2026 | 30-Day CCMA Deadline: 8 April 2026